

December 8, 2008



U.S. Department
of Transportation

East Building, PHH - 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14427
(THIRD REVISION)

EXPIRATION DATE: October 31, 2012

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Procter & Gamble Company
Cincinnati, OH
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain non-DOT specification, non-refillable plastic aerosol containers filled with a Division 2.2 propellant gas and a non-hazardous material. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce. The safety analysis did not consider the hazards and risks associated with consumer use or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.306(a) in that a plastic non-DOT specification, non-refillable container is not authorized, except as specified herein; and § 173.306(a)(3)(v) in that each container is not subject to the hot water bath test.

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5. BASIS: This special permit is based on the application of The Procter & Gamble Company dated November 24, 2008, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Aerosols, non-flammable, (each not exceeding 1 L capacity)	2.2	UN1950	N/A
Consumer commodity	ORM-D	None	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification, non-refillable, plastic container. The container must be in accordance with the design requirements as described in Procter & Gamble's application for special permit on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA) and as prescribed below.

(1) Type and size - The total volumetric capacity of the container may not exceed 20 fluid ounces.

(2) Material - The container must be of Polyethylene terephthalate (PET), Polyethylene Napthalate (PEN), Polyamide (Nylon), or of a multilayer blend containing a combination of PET, PEN, Ethylene Vinyl Alcohol (EVOH), and Nylon.

(3) Manufacture -

(i) All containers must comply with British Standard BS 5597: 1991 Specification for Non-refillable Plastic Aerosol Dispensers up to 1000ml capacity.

(ii) Each container must be manufactured by thermoplastic processes that will assure uniformity of the completed container. No used material other than production residues or regrind from the same manufacturing process may be used.

b. TESTING -

(1) One completed container out of every lot produced must be pressure tested to destruction and may not burst below 230 psig. The tested container must be complete with the ends assembled. If the test container fails the burst test, the lot must be rejected; however, an additional five randomly selected containers may be burst tested to qualify that lot. If any of the additional test containers fail the burst test, that lot must be rejected.

(2) Each 3,000 containers or less, successively produced as a batch or part thereof, must constitute a lot. All containers constituting a lot must be of like material, size, design, construction, finish, and quality.

c. OPERATIONAL CONTROLS -

(1) The container may not be liquid full at any temperature up to and including 130°F.

(2) The pressure in the container may not exceed 150 psig at 130°F.

(3) Filling verification test - One container selected randomly per lot of containers as filled for shipment must be heated until the pressure in the container is equivalent to the equilibrium pressure of the contents at 130°F. If the pressure of the test container exceeds 150 psig or the test container shows evidence of leakage, distortion, or other defect, the lot must be rejected; however, an additional 5 randomly selected containers from that lot may be tested to qualify that lot. If any of the additional test containers fail the test, the entire lot must be rejected.

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(4) Each plastic container must be plainly and durably marked "DOT-SP 14427" as specified in § 172.301(c).

(5) Each plastic container must be packed in strong outside packagings as prescribed in § 173.306(a)(3)(iv), meeting the requirements of § 173.25.

(6) Each outside packaging must be marked "INSIDE CONTAINERS CONFORM WITH DOT-SP 14427".

(7) Each package may not exceed 30 kilograms (66 pounds) gross weight.

(8) Notwithstanding the requirements of paragraphs (5), (6) and (7) above, packages which meet the § 171.8 definition of "Consumer commodity" may be shipped in accordance with § 173.306(i) and § 173.156.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Test data obtained under paragraph 7.b. of this special permit, must be kept on file and be made available upon request by the OHMSPA. Additionally, the following information must be submitted to OHMSPA:

(1) Burst test results for the first 20 lots tested under paragraph 7.b. of this special permit.

(2) Lading temperature and pressure data for the first 20 lots to verify that the pressure in the container is equivalent to the equilibrium pressure of the contents at 130°F without evidence of leakage, distortion, or other defect and that the pressure in the container does not exceed 150 psig at 130°F as specified in paragraphs 7.c.(3) of this special permit.

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- d. Any application for renewal of this special permit, must list any rejected lot information, including date of rejection, reason for rejection, number of containers rejected, and final disposition of rejected containers.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger-carrying aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat.

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1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



Donald Burger
Chief, Special Permits, Office of Hazardous Materials Special
Permits and Approvals

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Pipeline and Hazardous Material Safety
Administration, Department of Transportation, Washington, D.C.
20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at
http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm.
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PO: CWF/AM